

**SYNTHETIC COUNTERFACTUAL APPELLATE BRANCH — NEVER
OCCURRED ON THE ACTUAL DOCKET — ALL FACTS AND
IDENTIFIERS ARE FICTIONAL**

Branch source B01: submission-on-briefs route marker B01.

United States Court of Appeals for the Fourth Circuit

Mara Ellison v. Officer Nolan Rusk

No. SYN-CA4-26-CV-4104-CF-NEVER-OCCURRED

Order Submitting Appeal on the Briefs

Entered May 20, 2026

The appeal is submitted for decision without oral argument. Officer Nolan Rusk filed his opening brief and the joint appendix on March 16, Mara Ellison filed her response on April 15, and Rusk filed his reply on May 6. The panel has reviewed those materials, the certified district record, and the parties' statements concerning collateral-order jurisdiction. Their presentations adequately identify the legal qualified-immunity question and the separate factual-sufficiency dispute.

Chief Judge Alder and Judges Reed and March unanimously conclude that argument would not materially assist disposition. The order does not resolve either category of issue. In particular, submission on the papers does not permit the Court to decide whether Ellison struck Rusk's forearm, reached toward his duty belt, or instead only recoiled from a painful wrist grasp. Nor does the order forecast whether the assumed plaintiff-favorable account describes a violation of law that was clearly established on February 3, 2025.

The Clerk shall mark the appeal submitted as of this date and shall retain the existing panel assignment. No supplemental brief is authorized unless requested by later order. The parties remain responsible for giving prompt notice of a controlling decision or material change in the case's status.

Scope Preserved for Decision

This interlocutory appeal concerns an order denying summary judgment on Officer Rusk's qualified-immunity defense. The district court identified genuine disputes about resistance and threat, then separately held that Rusk lacked immunity if the facts are taken as Ellison described them. The distinction governs the panel's decisional boundary.

Under *Johnson v. Jones*, the Court may not use collateral-order jurisdiction to reweigh the obstructed recordings, choose between witnesses, or declare that Rusk's account occurred. Under *Barricks v. Wright*, it may determine the legal immunity question while accepting the supported plaintiff-favorable facts identified below. The parties' briefs address both forms of argument. Submission does not merge them.

For legal analysis, the panel will assume that Ellison was an unarmed, distressed welfare-check subject; that she recoiled and pulled after Rusk took her wrist; that she did not strike, grab, flee, threaten, or move toward police equipment; and that she presented no immediate danger when Rusk applied one five-second drive-stun cycle while forcing her down. Those assumptions are not trial findings. The district court remains the forum for resolving historical facts if any claim survives appellate review.

The Clerk shall serve this order electronically. The previously entered briefing schedule is discharged, the appeal is ripe, and judgment will issue only with a later opinion or dispositive order of the panel.